

CV-24-010014 DUBROVNA, OLHA vs SOUTHWESTERN ADVANTAGE INC - Defendant's Motion to Compel Plaintiff's Appearance at Deposition and Request for Monetary Sanctions in the Amount of \$6,142.05 – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The Court finds that the residency limitation in Code of Civil Procedure section 1989 prevents the court from granting Plaintiff's request given that the record demonstrates that Plaintiff currently resides in Poland and did so at the time of service of Defendants' deposition notices. A trial court's orders regarding the location of depositions are subject to the restrictions of section 1989. Toyota Motor Corp. v. Superior Court (2011) 197 Cal.App.4th 1107, as modified (July 28, 2011). Notably the Court in Toyota Motor Corp, supra expressly disagreed with Glass v and expressly declined to follow it. Toyota Motor Corp. v. Superior Court, supra, 1107 at 1124). Plaintiff did not object to either deposition notice on grounds of location, foreign residency, or Code of Civil Procedure section 1989, supporting a finding that Plaintiff waived objections to same. However, the Court finds said waiver insufficient to overcome the limitations of Civil Procedure section 1989. Defendant's request to compel Plaintiff's personal attendance in California is therefore denied. Plaintiff's request for monetary sanctions is also accordingly denied based on the court's finding that Plaintiff acted with substantial justification in failing to attend the noticed in person deposition Plaintiff shall appear for remote videoconference deposition within 45 days. The parties are to meet and confer to agree on a date and time for said deposition.

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